

24STCV30050 24STCV30050

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Case Number: 24STCV30050 Hearing Date: July 10, 2026 Dept: 529

JONNAE SERRANO VS LOYOLA MARYMOUNT
UNIVERSITY

MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST
FOR PRODUCTION (SET ONE) AND FOR THE AWARD OF \$29,725 IN SANCTIONS AGAINST
DEFENDANT LOYOLA MARYMOUNT UNIVERSITY AND ITS COUNSEL OF RECORD, JOINTLY AND
SEVERALLY

Date of Hearing: July

10, 2026 Trial Date: November

30, 2026

Department: 529 Case No.: 24STCV30050

Moving Party:

Plaintiff Jonnae Serrano

Responding Party: Defendant Loyola Marymount University

Meet and Confer: Yes.

BACKGROUND

On November 14, 2024, Plaintiff Jonnae

Serrano filed a complaint against Defendant Loyola Marymount University for 1.

Racial Harassment in Violation of FEHA 2. Racial Discrimination in Violation of

FEHA; 3. Retaliation in Violation of FEHA; 4. Failure to Prevent Harassment,

Discrimination and Retaliation in Violation of Cal. Gov't Code §12940(k); 5.

Discrimination in Violation of Cal. Educ. Codes §§220, 66251, 66270 6. Violation of Bane Act, Civ. Code § 52; 7. Discrimination, Harassment and Retaliation in Violation of Public Policy; 8. Intentional Infliction of Emotional Distress; 9. Negligent Supervision; and 10. Negligent Infliction of Emotional Distress.

[TENTATIVE] RULING

Motion to

Compel Further Responses to Plaintiff's Request for Production (Set One) and for the Award of \$29,725 in Sanctions against Defendant Loyola Marymount University and its Counsel of Record, Jointly and Severally is GRANTED.

DISCUSSION

Plaintiff

Jonnae Serrano moves this court for an order compelling Defendant Loyola Marymount University ("LMU") to serve verified, code-compliant supplemental responses to each of Plaintiff's Requests for Production of Documents (Set One), Nos. 1 through 53; compelling LMU to produce all documents responsive to Plaintiff's Requests for Production of Documents (Set One), Nos. 4, 7, 9, 10, 12, 14, 15, 21, and 49; compelling LMU to produce all remaining outstanding documents responsive to Plaintiff's Requests for Production of Documents (Set One); compelling LMU to either produce a privilege log or produce full and unredacted versions of all responsive documents; and awarding monetary sanctions in the amount of \$29,725.00 against Defendant LMU and its counsel of record, Anderson, McPharlin & Conners LLP, jointly and severally.

A motion to

compel further responses to a demand for inspection or production of documents ("RFP") may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (CCP § 2031.310(c).) A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (See CCP § 2031.310(b)(1).)

Plaintiff

argues LMU has failed to serve code-compliant RFP response. First, its June 20, 2025 responses combined boilerplate objections with vague compliance language.

(Johnson Decl. ¶3, Exh. 2). Its January 23, 2026 supplemental responses — served nearly two months after the IDC and only after Plaintiff’s repeated demands —addressed only some of the requests at issue, omitted others entirely, provided no Bates ranges, and uniformly recited that “Defendant will produce the reasonably related and responsive documents which are not protected by attorney client privilege.” (Johnson Decl. ¶ 14, Exh. 13.) According to Plaintiff, LMU has also failed to provide a complete statement of compliance under section 2031.310(a)(1). As a result, Plaintiff cannot prepare for trial or even take depositions without knowing what LMU has produced, what it claims to be withholding, and on what grounds.

RFP Nos. 4,
45

Plaintiff

moves to compel further responses to Strohl's Personnel File (RFP No. 4) and Strohl's Termination and Separation Agreement (RFP 45). Plaintiff argues at the November 24, 2025 IDC, this Court advised that Strohl's personnel record—except for limited records related to private medical information and benefits—should be produced without notice to Strohl and without a subpoena. However, LMU has narrowed the request to portions of Strohl's file “related to plaintiff's complaints.” Plaintiff contends this self-imposed limitation is contrary to the court's guidance, contrary to controlling authority on the discoverability of harasser personnel files and contrary to LMU's own representations at the IDC. As to No. 45, Plaintiff argues LMU's amended response promised production of “the reasonably related and responsive documents which are not protected by attorney client privilege” — yet LMU has not produced Strohl's separation agreement or any drafts, despite emails in LMU's own production attaching such drafts.

In

opposition, LMU argues RPD Nos. 4 and 45 seek confidential information about Tyler Strohl, an individual who is not a party to this case. Defendant has produced Tyler Strohl's personnel file, documents relating to Strohl's training, documents relating to Plaintiff's prior discipline and termination related documents, but has not produced his severance agreement as such information is confidential and not relevant to the matter. The additionally requested records do not specifically discuss Plaintiff's claims, complaint handling, review or decision.

The court

finds further responses warranted. As noted by Plaintiff, the personnel file of an alleged harasser and his separation agreement fall within the scope of discoverable material. As previously noted by the court, the production should exclude records related to private medical information and benefits. Plaintiff is entitled to the requested documents, as well as a supplemental response that all documents both for private medical information and benefits information have been produced. The court finds that Strohl's privacy interests are outweighed by the plaintiff's interest in the discovery sought here.

RFP Nos. 12,
15

Plaintiff

seeks LMU's policies and training on accommodating student workers with known or suspected disabilities (RFP No. 12) and LMU's training on the prevention and management of disability discrimination (RFP No. 15). Plaintiff contends LMU refuses to comply on the asserted ground that "there is no claim for disability discrimination in this matter[]"; however, the complaint expressly alleges that, after Plaintiff took medical leave in November 2022, "LMU discriminated against Ms. Serrano based on her disability and failed to accommodate her. Instead of conducting a good faith interactive process, LMU forced her to continue reporting to Strohl, intensifying Ms. Serrano's anxiety during an already exceedingly stressful time." (Compl. ¶ 27.)

In

opposition, LMU argues these requests are not properly limited in time and scope as the requests seek documents from prior to Plaintiff's employment with Defendant and post Plaintiff's employment with Defendant.

The court

finds further responses warranted. As noted by Plaintiff, the policies that LMU had in place with respect to discrimination and whether it adequately trained its staff are at the heart of Plaintiff's claims. RFP No. 12 seeks documents between July 1, 2022 to the present and RFP No. 15 seeks documents between July 1, 2021 to present. The court finds the scope and time not overbroad as Plaintiff began attending LMU in 2021 and became an RA in 2022.

RFP Nos. 7,
9, 10, and 14

RFP Nos. 7,

9, and 10 seek LMU's policies and protocols on the prevention and handling of racial discrimination and harassment from July 1, 2022 through the present. RFP No. 14 seeks LMU's training on the same subjects from July 1, 2021 through the present. Plaintiff argues LMU has refused to comply in full, agreeing only to produce policies "which applied specifically to the plaintiff in her role as a Resident Advisor in the 2022–2023 academic year" and training records "establishing that such training was provided to Autumn Taylor and Tyler Strohl." However, whether LMU's institution-wide policies and training were adequate, and whether other employees received the same training as Taylor and Strohl, are central to those claims.

In

opposition, LMU argues these requests seek documents from prior to Plaintiff's employment with Defendant and post Plaintiff's employment and are arguably outside of the scope of relevance for this matter. Still, LMU contends it did produce relevant and responsive documents including policies, and training records (LMU 000068-294).

As discussed

above, the court finds further responses warranted. LMU contends it did produce relevant and responsive documents. At the hearing, the parties are to note what has been produced and what is missing from production.

RFP Nos. 21

and 49

RFP No. 21

seeks documents pertaining to allegations of racial harassment or discrimination within or by LMU Housing from January 1, 2017 through the present. RFP No. 49 seeks documents pertaining to LMU's actions in response to complaints of racial harassment or discrimination from January 2019 through the present, including personnel and policy changes. Plaintiff argues me-too evidence is highly relevant and routinely ordered produced in FEHA cases and such evidence is critical to demonstrating LMU's notice of Strohl's conduct, the adequacy of its preventive and remedial measures, and whether LMU ratified, condoned, or endorsed the misconduct alleged here. Moreover, LMU has identified no specific privacy interest, no specific person whose privacy would be implicated, and no factual basis for concluding that disclosure under the parties' Stipulated Protective Order would constitute a serious intrusion.

In

opposition, LMU argues Defendant has been agreeable and has produced documents pertaining to allegations of racial harassment and discrimination brought by Plaintiff and those pertaining to Tyler Strohl, Plaintiff's supervisor (LMU 000317-319, 331-335, 442-444, 480, 491-492, 494-498). Such records regarding racial harassment and discrimination from students, if any, are subject to the Family Educational Rights and Privacy Act and require the consent of the student or the parent. Further, these requests seek documents regarding staff and students prior to and post Plaintiff's employment. Such requests are not particularly limited to sufficiently similar claims constituting relevant evidence and gathering every single complaint would be extremely and unduly burdensome to Defendant.

The court

finds further responses warranted as such documents could lead to the discovery of relevant and admissible evidence, namely whether other employees/students had complained of racial discrimination and harassment of African American students/employees during this period, not only relating to Mr. Strohl, and how the university responded to such complaints. See *Pantoja v. Anton* (2011) 198 Cal.App.4th 87, *Meeks v. Autozone, Inc.* (2018) 24 Cal.App.5th 855, and *Johnson v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties* (2009) 173 Cal.App.4th 740. Nonetheless, the court agrees that the time period is too broad and should be limited to January 1, 2021 to the end of 2023. Further, because these documents may contain treatment of students or student complaints, as well as the privacy rights of other employees, the court finds FERPA must be complied with, as well as due process and privacy procedures. FERPA permits disclosure of educational records "in compliance with judicial order, or pursuant to any lawfully issued subpoena," but requires that "parents and the students are notified of all such orders or subpoenas in advance of the compliance therewith by the educational institution or agency".

The court, therefore rules that LMU must notify any students and/or employees who complained during this period of racial discrimination or harassment by LMU that their complaint and investigative files are being sought and that such documents will be produced unless they notify the school in writing, or file an objection with the court within 21 days of receiving notice from LMU.

Documents

Plaintiff

argues even within the categories of requests with which LMU has agreed to comply, LMU has withheld discrete, identifiable categories of responsive documents. The responsive documents include EEO Reports and Investigations, other complaints against Strohl, April 2022 written warning to Strohl, October 2022 proposed Strohl MOU, Strohl's termination and separation agreement, investigation of Plaintiff's complaint (including other witnesses), and notes and records from relevant meetings. These documents, Plaintiff argues, fall squarely within one or more of RFP Nos. 4, 17, 20, 45–48, and 50 (with which LMU has agreed to comply) and within RFP Nos. 21 and 49 (seeking me-too evidence, which the Court should now order produced).

The court

finds further production warranted. LMU does not engage in this discussion other than it did a partial production of the documents. It provides no reason why full production was not done. The documents are relevant to the facts at hand and must be produced.

Privilege Log

Plaintiff

argues LMU's January 23, 2026 supplemental responses recite that LMU will produce documents "which are not protected by attorney client privilege," yet LMU has produced no privilege log, has never identified the documents it claims to be withholding, and has never specified the privileges asserted or the basis for any redactions.

LMU is

ordered to produce a privilege log meeting the requirements of section 2031.240(c)(1).

Sanctions

Plaintiff

seeks \$29,725 in sanctions for 25 hours preparing meet-and-confer correspondence, 5.5 hours drafting the IDC brief, 3 hours preparing for and attending the IDC, and 7.5 hours preparing the instant motion, at an hourly rate of \$725.

The court

denies the request for sanctions.

Defendant's position was substantially justified with respect to the privacy interests raised by these discovery requests and the overbreadth of some of the requests.